

24STLC00440 24STLC00440

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-18

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Case Number: 24STLC00440 Hearing Date: August 18, 2026 Dept: 25

HEARING DATE: Tues., August 18, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Avis Rent a Car Systems, LLC v. Wheeler

COMP. FILED: 01-23-24

CASE NUMBER: 24STLC00440

NOTICE: OK

PROCEEDINGS: MOTION TO VACATE AND SET ASIDE DEFAULT AND DEFAULT JUDGMENT

MOVING PARTY: Defendant Elvin Wheeler

RESP. PARTY: Plaintiff Avis Rent a Car Systems, LLC

MOTION TO SET ASIDE DEFAULT JUDGMENT

(Code Civ. Proc., §§ 473(d), 473.5)

TENTATIVE RULING:

The Court GRANTS Elvin Wheeler's motion to vacate and set aside the default and default judgment entered against him.

The June 3, 2024 default and August 11, 2025 default judgment are hereby SET ASIDE AND VACATED.

The March 1, 2024 proof of substituted service on Wheeler is STRICKEN.

The Court DENIES Avis's request for a penalty pursuant to Code of Civil Procedure section 473, subdivision (c).

The Court

sets an ORDER TO SHOW CAUSE Re: Proof of Service for 10/26/2026 at 9:30 a.m.

in Department 25 of the Spring Street Courthouse.

The Court

also sets a TRIAL SETTING CONFERENCE for 10/26/2026 at 9:30 a.m. in Department

25 of the Spring Street Courthouse.

Defendant/Moving

Party Elvin Wheeler is ordered to give notice.

Wheeler is to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed June 23, 2026 ☐ Late ☐ None

REPLY: None filed as of August 13, 2026 ☐ Late ☒ None

ANALYSIS:

Avis Rent a Car Systems, LLC sued Elvin Wheeler for damage he allegedly caused to a rental car. The Court entered a default judgment against Wheeler, who now moves to have both that judgment and the underlying default set aside. The Court GRANTS Wheeler's motion.

A registered California process server declared that a copy of the summons, complaint, and various other case-opening materials were left for Wheeler at 19502 Campaign Drive, Carson, California 90746, with "John Doe"—who declined to give his name—a co-occupant who appeared to be a "30+"-year-old African American man with black hair, standing

five-feet-seven-inches and weighing 150 pounds. The server then mailed those materials to Wheeler at the same address. (See Code Civ. Proc., § 415.20, subd. (b) [if a person can't be personally served with reasonable diligence, he can be served in this manner].) The process server's declaration is prima facie evidence that Avis effected service on Wheeler. (Evid. Code, § 647; e.g., *Lee v. Yan* (2025) 115 Cal.App.5th 975, 978.)

While Wheeler does not dispute the address as his home address, he argues that he lived alone on and around the date of substituted service. The alleged co-occupant who was given the papers was therefore not "a competent member of the household" as required by Code of Civil Procedure section 415.20, subdivision (b). Wheeler provides declarations from Al Tarver, Marcos E. Hernandez-Martinez, and Rashida Lenard, all friends of his, who declare that to their knowledge Wheeler lived alone and no one fitting the description set forth in the process server's substituted service declaration lived with him at the time of purported service. Wheeler's son confirms this, and also attests while he lived with Wheeler briefly, he did not even visit the year that he was purportedly served. Wheeler's other child agrees, though that child moved into Wheeler's home in late 2024. Finally, Wheeler declares that he lived alone, there was no visitor at his home during that time, did not receive the papers through service or mail, and that he was 63 years old in February 2024—providing pictures of himself indicating that he could not be reasonably mistaken for someone 30 years old at that time (even if the process server said "30+").

Wheeler has demonstrated sufficiently that substituted service was not properly effected on him or "a competent member of [his] household" to satisfy Code of Civil Procedure section 415.20. That means service on Wheeler was ineffective, and the default and default judgment against him are void. (*Chinese Theater, LLC v. Starline Tours USA, Inc.* (2025) 115 Cal.App.5th 1048, 1056.) Wheeler is entitled to relief under Code of Civil Procedure section 473, subdivision (d).

And given that service was ineffective, the Court lacks jurisdiction over Wheeler and service of summons is properly requested to be quashed pursuant to Code of Civil Procedure section 418.10. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 393–394.)

The Court sets aside and vacates the June 3, 2024 default and August 11, 2025 default judgment against Wheeler, and strikes the March 1, 2024 proof of substituted service on him. It DENIES Avis's request to order Wheeler to reimburse its costs.

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